

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 739

Introduced by Rountree, 3.

Read first time January 07, 2026

Committee:

- 1 A BILL FOR AN ACT relating to civil procedure; to amend section
- 2 25-21,271, Revised Statutes Cumulative Supplement, 2024; to change
- 3 notice requirements for petitions to change an individual's name;
- 4 and to repeal the original section.
- 5 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 25-21,271, Revised Statutes Cumulative
2 Supplement, 2024, is amended to read:

3 25-21,271 (1) Any person desiring to change his or her name shall
4 file a petition in the district court of the county in which such person
5 may be a resident, setting forth (a) that the petitioner has been a bona
6 fide citizen of such county for at least one year prior to the filing of
7 the petition, (b) the address of the petitioner, (c) the date of birth of
8 the petitioner, (d) the cause for which the change of petitioner's name
9 is sought, and (e) the name asked for.

10 (2)(a) Except as provided in subdivision (2)(b) of this section,
11 notice of the filing of the petition shall be published in a newspaper in
12 the county, and if no newspaper is printed in the county, then in a
13 newspaper of general circulation therein. The notice shall be published
14 ~~(i) once a week for four consecutive weeks if the petitioner is nineteen~~
15 ~~years of age or older at the time the action is filed and (ii) once a~~
16 ~~week for two consecutive weeks if the petitioner is under nineteen years~~
17 ~~of age at the time the action is filed.~~

18 (b) The court may waive the notice requirement of subdivision (2)(a)
19 of this section upon a showing by the petitioner that such notice would
20 endanger the petitioner.

21 (3) In an action involving a petitioner under nineteen years of age
22 who has a noncustodial parent, notice of the filing of the petition shall
23 be sent by certified mail within five days after publication to the
24 noncustodial parent at the address provided to the clerk of the district
25 court pursuant to subsection (1) of section 42-364.13 for the
26 noncustodial parent if he or she has provided an address. The clerk of
27 the district court shall provide the petitioner with the address upon
28 request.

29 (4) It shall be the duty of the district court, upon being duly
30 satisfied by proof in open court of the truth of the allegations set
31 forth in the petition, that there exists proper and reasonable cause for

1 changing the name of the petitioner, and that notice of the filing of the
2 petition has been given as required by this section, to order and direct
3 a change of name of such petitioner and that an order for the purpose be
4 entered by the court.

5 (5) The clerk of the district court shall deliver a copy of any
6 name-change order issued by the court pursuant to this section to the
7 Department of Health and Human Services for use pursuant to sections
8 28-376 and 28-718 and to the sex offender registration and community
9 notification division of the Nebraska State Patrol for use pursuant to
10 section 29-4004.

11 **Sec. 2.** Original section 25-21,271, Revised Statutes Cumulative
12 Supplement, 2024, is repealed.